

VEHICLE RENTAL AGREEMENT No. _____

Date of Agreement

Druskininkai

I. SUBJECT OF THE RENTAL AGREEMENT

1. Under this Vehicle Rental Agreement (hereinafter - the "Agreement"), MB "Carbonus" (company code 307196558), represented by Director Tomas Cepulis (hereinafter - the "Lessor"), rents a car to the Lessee (the Lessor and the Lessee hereinafter collectively - the "Parties"). The Lessee agrees to comply with the rules for the use of the car established by this Agreement and confirms this by signing below.

II. VEHICLE HANDOVER AND RETURN

2. By accepting the car, the Lessee confirms with their signature that the car has been received in proper order and good technical condition (suitable for safe operation), together with all additional accessories, including the vehicle documents.

3. Upon return, the car must be in the same technical condition and completeness as at the commencement of use, taking into account normal wear and tear.

4. The car shall be returned to the Lessor at the time specified in the Agreement or its annexes.

5. During working hours, the rented car shall be collected and delivered (returned) at the location specified in the Agreement or agreed by the Parties. If the car is returned after working hours or on weekends/public holidays, additional return conditions (fees) shall apply as coordinated and confirmed by mutual agreement of the Parties or as stipulated in Annex to this Agreement.

6. The car is rented and handed over to the Lessee with a full fuel tank, a clean (washed) exterior and a tidy interior. When returning the car, the Lessee shall ensure the same (full tank, washed exterior, tidy interior).

7. If the car is returned in breach of clause 6 of the Agreement, the Lessee shall pay the Lessor compensation of EUR 1.5 (incl. VAT) per each missing litre of fuel up to a full tank; and, if the car is returned with a dirty exterior and/or untidy interior, the Lessee shall pay the Lessor a penalty of EUR 20 for an unwashed car and EUR 20 for an untidy interior, respectively.

8. If the Lessee breaches the terms of the Agreement, performs them improperly, or where it is anticipated that the Lessee will be unable to duly perform obligations arising from this Agreement, the Lessor shall have the unconditional right to repossess the car prior to the agreed (scheduled) time and, if necessary, contact law enforcement or other authorities to initiate search/recovery of the car.

9. If the Lessee fails to return the car within 24 hours, counted from the end of the return term specified in the Agreement, and fails to inform the Lessor of the delay by any acceptable or agreed means of communication, the Lessor shall have the right to contact law enforcement authorities regarding theft, destruction or damage of the car and to claim damages from the Lessee, save where such damage is indemnified by the insurance company or to the extent the insurance company covers only part of the

damage.

III. USE OF THE CAR

10. During the rental period, the car may be driven only by the Lessee or the Lessee's employee (where the Agreement is concluded with a legal entity) who is authorised to drive company vehicles and duly authorised to drive the rented vehicle. The Lessee/company shall be responsible for faults and for actions and consequences causing damage arising from the driving of the rented vehicle, except where the insurance company fully compensates the Lessor.

11. The Lessee shall ensure safe and proper operation of the car throughout the rental period and shall lock all doors when leaving the car unattended, even for a short time.

12. The Lessee undertakes to safeguard the documents and keys of the rented vehicle and to ensure that they do not come into the possession of third parties.

13. The Lessee is prohibited from: 13.1. Using the rented car to carry passengers for remuneration; 13.2. Using the car for towing trailers or other vehicles; 13.3. Using the car to transport goods in violation of the laws of the Republic of Lithuania governing carriage of goods; 13.4. Using the car for criminal activity; 13.5. Driving the car while intoxicated or under the influence of psychotropic substances or strong medication affecting reaction and alertness; 13.6. Using the car in sports events or other activities where traffic safety and driving rules are not observed; 13.7. Carrying valuables without documents proving ownership thereof; 13.8. Carrying flammable liquids and substances, weapons, explosives, narcotic and psychotropic substances and other items whose possession, use, carriage or distribution is prohibited by law; 13.9. Smoking in the car (fine: EUR 50).

14. The Lessee/driver of the rented vehicle must comply with road traffic safety rules and the terms of this Agreement.

15. The Lessee must ensure timely periodic checks of the oil level and other vehicle fluids and take measures to top them up, as well as monitor tyre pressure and, where necessary, take timely measures to increase it.

16. In the event of a breakdown, repairs may be carried out only after coordination with the Lessor (place, time, costs, etc.) and obtaining the Lessor's consent. Repair costs shall be borne by the Lessor, unless the Parties agree otherwise.

17. The Lessee must take measures and ensure that, during the hours of darkness, the car is maximally protected from theft and destruction/damage.

IV. THEFT, ACCIDENTS AND OTHER BREAKDOWNS

18. In the event of a road incident, accident, fire, discovery of damage to the car caused by third parties, or theft of the car, the Lessee must immediately (no later than within 8 hours) contact the relevant authorities and inform the Lessor.

19. The Lessee acknowledges that documents issued by law enforcement officials and certificates issued by transport companies are important and may serve as the basis for determining the level of damage and paying an insurance indemnity for loss, damage or destruction of the car, as well as for submitting claims against third parties (perpetrators).

20. The Lessee undertakes to preserve items of evidence (objects, traces, witness

statements, photographs, etc.) and the contact details of the parties involved and witnesses. The Lessee is warned and acknowledges that it is prohibited to sign any documents that may harm the reputation of the Lessor, that attribute liability for damage or losses to the Lessor, etc.

21. The Lessee or the lawful user (authorised driver) of the rented vehicle must take measures to protect the legitimate interests of the Lessor and the vehicle's insurance company if, during the rental period, a road incident, accident, damage, destruction or theft of the car occurs, namely: 21.1. Immediately rescue the vehicle, protecting it from further damage and eliminate causes that may harm the value of the car and increase losses; 21.2. Notify law enforcement authorities and the insurance company about the incident and obtain the documents evidencing such notification (the notice must record information about the damage to the car, when and to whom the incident was reported, the perpetrators (if known) and their contact details, witnesses and their contacts); 21.3. Immediately inform the Lessor of the incident.

22. The Lessor shall not be liable for any damage or losses suffered by the Lessee during the rental period, including for items or property belonging to the Lessee left (damaged or missing) in the rented car.

V. INSURANCE OF THE CAR AND OTHER CHARGES

23. The Lessor is responsible for insuring the car. The compulsory motor third party liability insurance must be valid in European Union Member States and must specify that third parties may also drive the car.

24. The Lessee or authorised driver shall be responsible for road tolls and other charges, as well as for fines for violations of road traffic rules committed while driving the rented car.

VI. PAYMENT TERMS

25. The car shall be delivered only after the rental price and deposit (if applicable) are paid.

26. The rental price includes all taxes and other costs payable by the Lessor, as well as vehicle insurance and technical maintenance.

27. Rental rates specified in the annexes to the Agreement are fixed and unchangeable throughout the term of the Agreement.

28. The Lessee, no later than within 10 business days after a claim is submitted, shall additionally cover the following expenses (these may be covered from the cash deposit, if such was provided) incurred during the car rental period: 28.1. Additional rental amount calculated for the additional rental period or for a late return of the car; 28.2. Compensation for returning the car with an incomplete fuel tank (clause 7 of the Agreement); 28.3. A EUR 50 penalty for smoking in the car; 28.4. A EUR 100 (one hundred euros) penalty for losing the car documents or keys; 28.5. Full compensation for damage due to damage to, loss or destruction of the car, as well as the deductible (excess) in the event of an insurance case (CASCO), if the car was insured by CASCO. This provision shall not apply to the extent such damage is covered by the insurance company. The Lessee shall not be liable for damage where the damage did not arise due to the Lessee's fault (intent or negligence).

29. For each delayed day of compensation or payment of damages, the Lessee shall pay the Lessor default interest of 0.5% (five tenths) of the delayed amount.

VII. LESSEE'S LIABILITY

30. The Lessee is fully liable for damage or breakdowns caused to the car intentionally or due to negligence or lack of due care, as well as for other losses payable to the Lessor, if the Lessee has violated safe operating rules of the vehicle and the terms of this Agreement set forth in Sections III and IV, even if the insurance company refuses to compensate the damage and losses incurred during the rental period. The Lessee shall not be liable for damages where the damage did not arise due to the Lessee's fault (intent or negligence).

VIII. LESSOR'S LIABILITY

31. The Lessor shall not be liable for the Lessee's losses arising from the Lessee's inability to use the car due to a breakdown during the rental period or due to an accident, damage to or loss of the car. Where possible, and subject to agreement of the Parties, the Lessor shall take measures to repair the rented car at its own expense (unless otherwise agreed by the Parties) or, where possible, replace it with another car. In the event of replacement, issues relating to the costs of delivery of the replacement car and repatriation of the damaged car shall be resolved by agreement of the Parties.

32. The Lessor shall not be responsible for the Lessee's health during and after the rental period, or for damage caused by the Lessee to passengers or third parties, or arising due to the Lessee's fault during the rental period.

33. The Lessor shall not be liable for any loss of the Lessee's property or any deficiency thereof during and after the rental period.

IX. FINAL PROVISIONS

34. The Agreement may be unilaterally terminated at the initiative of either Party by notifying the other Party no later than 10 business days in advance.

35. The Rental Agreement, its amendments and annexes shall be valid only in written form agreed and signed by both Parties.

36. The Agreement is concluded in English. Two copies shall be executed, one for each Party. Both copies have equal legal force.

37. The laws of the Republic of Lithuania shall apply to this Agreement and relations arising therefrom. All disputes arising from this Agreement shall be resolved through negotiations; failing an amicable resolution, disputes shall be referred to court.

LESSOR:

_____ Director Tomas Cepulis MB "Carbonus" Company code:
307196558 Address: Neravu 2A-6, Druskininkai, Druskininku sav. A/C:
LT547189900059467578 (AB Artea bankas) Tel. +37069818781 E-mail:
info@carbonus.lt

LESSEE:

_____ (name, surname) Address _____ Tel.
_____ E-mail _____

ANNEX No. 1 TO VEHICLE RENTAL AGREEMENT No. _____

LESSOR:

MB "Carbonus", Neravu 2A-6, Druskininkai, Druskininku sav. Company code:
307196558 Director: Tomas Cepulis E-mail: info@carbonus.lt Tel. +37069818781

LESSEE:

_____ (entity/name and surname) Address
_____ Personal (company) code: _____ A/C
_____ E-mail _____ Tel.

RENTED VEHICLE:

Model: _____ Reg. No.: _____ Vehicle ID: _____ Year of
manufacture: _____ Color: _____ Mileage: _____

A technically sound car is delivered with a full fuel tank and clean. The following are delivered with the car:

- ☐ Equipment*
- ☐ Keys
- ☐ Documents (registration certificate, insurance, roadworthiness certificate)
- ☐ Serviceable spare wheel
- ☐ Car jack and wrench for wheel replacement
- ☐ Fire extinguisher
- ☐ First aid kit
- ☐ Car audio system
- ☐ Child seat
- ☐ Other (specify)

* tick as appropriate

RENTAL START:

_____ y. _____ month __ d. __ h. Rental period (days): _____;

PRICE:

Rental price (per 1 day) (EUR): _____; RENTAL END: _____ y. _____ month
__ d. __ h. Total rental price (EUR): _____;

DEPOSIT:

Deposit amount: _____ (EUR). The car shall be returned at:
_____.

If the car is returned on a weekend, public holiday or after working hours, an additional EUR 20 fee applies (VAT excluded).

NOTES

LESSOR:

_____ TOMAS CEPULIS

LESSEE:

_____ (name, surname)